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Case Number: 25NWCV00368 Hearing Date: August 4, 2026 Dept: L

Defendant Monterey Lakewood

Owner, LLC's Demurrer to the Complaint is SUSTAINED without leave to amend.

Defendant's Motion to Strike

is MOOT.

Defendant to give notice.

Background

This is a wrongful death action.

On January 29, 2025, Plaintiff Brian Anakin Hill-Alamina, a minor, by and through his guardian ad litem, Angela Hill, individually and as wrongful death beneficiary and successor-in-interest to decedent Brian Alamina, ("Plaintiff") filed this action against Defendants City of Lakewood, City of Cerritos, County of Los Angeles, State of California, Greystar California, Inc., and Does 1 to 100.

Various amendments, cross-pleadings, and dismissals have been filed. As amended, the Complaint asserts claims against Defendants the City of Lakewood, the City of Cerritos, The People of the State of California, acting by and through the Department of Transportation, Greystar California, Inc., Yasseerarafat G. Shaikh, Mirza Mahejabin, B9 MF 12350 Del Amo LLC, and Monterey Lakewood Owner, LLC (collectively, "Defendants"). The Defendants have filed a total of five cross-claims directed amongst themselves.

The Complaint alleges that Brian

Alamina ("Decedent") was killed in a motor vehicle accident on roadways that were negligently owned, designed, and maintained by Defendants such that there was an unreasonable risk of harm to Decedent. Specifically, in June 2024, Decedent "was traveling eastbound on Del Amo Boulevard between Norwalk Boulevard and Claretta Avenue when a vehicle operated by Yaseerarafat G. Shaikh attempted a U-turn and collided with [him]." (Compl., ¶ 1.) The Complaint alleges causes of action for 1) Negligence, 2) Premises Liability, 3) Negligence - Dangerous Condition of Public Property, 4) Survival Action, and 5) Wrongful Death.

Defendant Monterey Lakewood

Owner, LLC (hereinafter, "Monterey") now demurs to all causes of action in the Complaint. Monterey also moves to strike portions of the Complaint.

Request for Judicial Notice

Monterey's Request for Judicial

Notice of a recorded Grant Deed, dated January 15, 2025, transferring real property from Monterey to Towne Center Fee Owner, LLC, (Exhibit A) is granted.

Legal Standard

"[A] demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. ("Donabedian") (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, "[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a

demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245.)

Meet and Confer

Code of Civil Procedure section 430.41, subdivision (a) and section 435.5 require that the parties meet and confer “in person, by telephone, or by video conference.”

The parties met and conferred via telephone regarding the issues in this Demurrer and Motion to Strike but were unable to come to a resolution. (Olson Decl., ¶ 2.) The Court finds that the meet and confer requirement has been met.

Discussion

Monterey provides the following context for this Demurrer: The Complaint alleges that the public roadway and the gate at the adjacent apartment complex created a dangerous condition because of roadway configuration, U-turn space, signage, markings, visibility, insufficient signals or signs and an adjacent apartment-complex gate. (Compl., ¶¶ 3, 25.) The Complaint alleges that Defendant Greystar California, Inc. owned the gate at the adjacent apartment complex (hereinafter, “Private Premises”). (Ibid.) Monterey was later named as Doe 4.

Monterey argues that the first and second causes of action for negligence and premises liability fail because Plaintiff cannot plead duty, control, or causation against it. Specifically, a recorded grant deed shows Monterey conveyed its interest in the property to Towne Center Fee Owner, LLC in January 2015, nine years before the subject incident. (RJN, Exh. A.) Thus, Monterey had no duty because it did not own, possess, or control the Private Premises. Further, Monterey had no duty because the incident occurred on a public roadway, and a private landowner has no duty to maintain adjacent public property. The Complaint does not allege that Monterey created a hazard condition or had significant control over the public roadway. Because the tort causes of action fail, the fourth and fifth causes of action for wrongful death and survival action, which are derivative claims, also fail.

As to the third cause of action for dangerous condition of public property pursuant to Government Code sections

830 and 835, such claim does not apply to private entities such as Monterey.

In opposition, Plaintiff cites to the following allegations as they pertain to Monterey:

- “[T]he gate at the adjacent apartment complex. . .is designated for exiting vehicles only, not left turning vehicles to enter. So vehicles in the left-turn lane. . .were forced to make U-turns only.” (Compl., ¶ 3.)

- “[Defendant] planned, designed, built, constructed, maintained, operated, controlled, repaired, and/or monitored the roadway and adjacent apartment complex at the collision site, and failed to make the roadway and complex safe for drivers. . .” (Compl., ¶ 15.)

- “The entrance to the adjacent apartment complex at this location created a hazardous condition.” (Compl., ¶ 35(c).)

- “The subject area and the adjacent property created inadequate visibility, including lacking a reasonable line of sight.” (Compl., ¶ 35(k).)

The Complaint thus alleges that Monterey designed, implemented, and maintained the hazardous condition that caused the subject incident, at the time it owned the Private Premises. Plaintiff asserts that the fact that Private Premises were transferred in 2015 is not dispositive. The general rule on non-liability for dangerous conditions created by landowners does not apply to commercial developers like Monterey. Further, the Complaint’s theory of liability rests on negligent design of the Private Premises, which does not rely on ownership at the time of the subject incident. Because Monterey contributed to dangerous condition of the public roadway, via the Private Premises, it can be held liable regardless of where the incident took place.

In reply, Monterey reiterates its arguments. Monterey notes that there are no allegations in the Complaint that Monterey was a designer, architect, or developer.

The general rule is the prior owners are not are not liable for harm that occurs to third-parties after they relinquish ownership and control, even if their negligence created the hazard and it existed at the time of sale. (*Preston v. Goldman* (“Preston”) (1986) 42 Cal.3d 108, 112, 125-127 [adopting Rest.2d Torts § 352]; see also *Lewis v. Chevron U.S.A., Inc.* (“Lewis”) (2004) 119 Cal.App.4th 690, 692.) However, an exception to this rule is that prior owners may be liable if they actively conceal known defective conditions to the buyer. (See *Lewis*, supra, 119 Cal.App.4th at p. 698 [“The Restatement provides for no liability unless a seller knows of a hidden defect and conceals it. “].)

This case is similar to the *Lewis* case. In that case, the plaintiff was working on premises when a copper water pipe burst, injuring the plaintiff. (*Lewis*, supra, 119 Cal.App.4th at p. 692.) The plaintiff substituted in *Chevron U.S.A., Inc.* (“Chevron”) as a doe defendant. (*Ibid.*) Chevron sold the property to the current owner eight years prior to plaintiff’s accident. (*Ibid.*) The Court of Appeal affirmed the trial court’s granting of summary judgment based on the general rule barring liability for predecessor owners, finding that the “known condition” exception did not apply based on plaintiff concessions. (*Id.* at pp. 699-700.) The Court notes that the *Lewis* case involved a motion for summary judgment—however, the application of law regarding duty is relevant here.

Here, the judicially-noticed grant deed (RJN, Exh. A) reveals that Monterey transferred its interest in the Private Premises to another entity in 2015, nine years prior to the subject incident. The Court thus finds that, as a prior owner, Monterey had no duty for Plaintiff’s harm, even if their negligence created the hazard. Further, there are no allegations in the Complaint suggesting that Monterey actively concealed any known hazard from the buyer such that the exception to the general rule should apply.

Further, as to Plaintiff’s argument that Monterey can be held liable for negligent design of the Private Premises, the Court acknowledges that “builders, contractors, and architects owe a duty of care to third parties.” (*Beacon Residential Community Assn. v. Skidmore, Owings & Merrill LLP* (2014) 59 Cal.4th 568, 573.) However, there are no allegations in the Complaint that Monterey was a builder, contractor, or architect of the Subject Premises. The Complaint only contains

conclusory statements that Defendants negligently “planned, designed, built, constructed, maintained” the subject area. (Compl., ¶¶ 15, 16, 18, 27, 29, 34.) Plaintiff offers no explanation in the opposition suggesting how the Complaint can be amended to specifically allege that Monterey negligently designed the Private Premises. Further, even if it could be established that Monterey created the defect, Monterey would still be shielded by the non-liability for former owners rule. (See Lewis, supra, 119 Cal.App.4th 690, 692.)

Thus, the Court finds that Complaint fails to state a cause of action for negligence and premises liability, as well as the derivative causes of action for wrongful death and survival action.

As to the third cause of action for dangerous condition of property, the Court finds that Monterey cannot be held liable as a private entity. The third cause of action is brought under “Government Code Sections 815.2, 815.4, 815.6, 820, 830, 830.8, 835, and 835.2 et seq.” (Compl., ¶ 37.) Government Code section 830 defines property of a public entity” and “public property” as used in section 835 [regarding dangerous conditions of public property] to mean “real or personal property owned or controlled by the public entity.” (Gov. Code, § 830.) Plaintiff does not address this point in the opposition. Thus, the Court finds that the Complaint fails to state a cause of action for dangerous condition of property against Monterey.

Accordingly, Monterey’s Demurrer to the Complaint is sustained without leave to amend as to all causes of action.

Motion to Strike

As the Demurrer was sustained in full without leave to amend, the Motion to Strike is moot.